



Appeal Decision

Site visit made on 2 September 2026

by R Hitchcock BSc DipCD MRTPI

an Inspector appointed by the Secretary of State

Decision date: 03 September 2026

Appeal Ref: APP/T2350/C/25/3374492

Raja Farm, land off Whalley Old Road, Langho, BLACKBURN, BB6 8DS

- The appeal is made under section 174 of the Town and Country Planning Act 1990 (as amended).
- The appeal is made by Mr Mudassir Shaheen against an enforcement notice issued by Ribble Valley Borough Council.
- The notice was issued on 10 September 2025.
- The breach of planning control as alleged in the notice is 'Without planning permission,
 1. the construction of a timber building on the land.
 2. The unauthorised creation of an access from the land, onto the highway.
 3. The installation of a CCTV pole on the land.'
- The requirements of the notice are to: a) Remove the timber building and any associated base and or footings on the land and return the land to its former agricultural use. b) Remove any hardstanding's (sic) at the unauthorised access to the land and return it to its former agricultural appearance. c) Remove the CCTV pole and associated cameras and or solar panels attached to it, which has been installed on the land.
- The periods for compliance with the requirements are: Steps a) and c) – four weeks; step b) two weeks.
- The appeal is proceeding on the ground set out in section 174(2)(a) of the Town and Country Planning Act 1990 (as amended). Since an appeal has been brought on ground (a), an application for planning permission is deemed to have been made under section 177(5) of the Act.

Decision

1. It is directed that the enforcement notice is corrected by:
 - the addition of grid reference '(370811, 433198)' following the site address in Section 2;
 - deletion of the word 'or' from paragraphs 5a) and 5c);
 - deletion of the words 'and return the land to its former agricultural use' from paragraph 5a) and the word 'agricultural' from paragraph 5b);
 - the deletion of the apostrophe in paragraph 5b).
2. Subject to the corrections, the appeal is dismissed, the enforcement notice is upheld and planning permission is refused on the application deemed to have been made under section 177(5) of the 1990 Act as amended.

Preliminary Matters

3. Pursuant to s174(2A) of the Act the highway access, which was the subject of planning application ref. 3/2025/0454, is barred from the ground (a) appeal because that element of the alleged breach has already been formally determined with an associated right of appeal. Although that refused application also included a building, the Council have confirmed that was in a different location and of

different construction to that referred to in the Notice. The ground (a) appeal is limited to consideration of the existing building and the CCTV pole.

4. On 17 August 2026, the Government published a revised National Planning Policy Framework (the Framework) which replaced the earlier iteration. However, the Green Belt and design policies that are relevant to this appeal have not materially changed and there was no need, therefore, to invite the parties to make further submissions in response to the revised Framework. I have used the updated paragraph/policy references in this decision.

The Notice

5. There are conflicting references to the site address between the Notice and representations made by the main parties and the highway authority. The site is alternatively referenced as York Road which is a continuation of Whalley Old Road. The Council confirm that Land Registry documents and local mapping identify the road as Whalley Old Road, as do the highway authority. Accordingly, I find the address used in the Notice appropriate.
6. The plan attached to the Notice identifies the boundaries of the Land subject of its requirements sufficient to satisfy s173(10) of the Act and Regulation 4(c) of the Town and Country Planning (Enforcement Notices and Appeals) (England) Regulations 2002. However, between the site address and single site plan, the specific location of the Land is unclear. Notwithstanding, because the main parties are familiar with the site and it has not prevented the appellant (the only recipient of the Notice) from making an appeal, that matter can be corrected without prejudice to either party in accordance with s176 of the Act. For the avoidance of doubt the site grid reference should be added to the address in the Notice.
7. Section 173(3) of the Act sets out that an enforcement notice shall specify the steps which the authority require to be taken. The case of *Miller-Mead*¹ held that the test of the validity of a notice is namely whether it tells the recipient fairly what they have done wrong and, with *reasonable certainty*, what steps had to be taken to remedy the alleged breaches.
8. The requirements at paragraphs 5a) and 5c) of the Notice include 'and or' options. This results in a degree of uncertainty as to exactly what the Notice requires. Additionally, the allegation does not include explicit reference to solar panels but paragraph 5c) requires their removal such that a mis-match between the allegation and requirements exists.
9. In *Oates*² the High Court helpfully set out relevant principles in respect of the matter of whether an enforcement notice is a nullity. Some degree of uncertainty or other defect in the relevant section of the notice does not mean there is non-compliance with section 173(1). Whether a defect renders the notice null must be viewed in the context of:
 - the importance or otherwise of that particular part of the enforcement notice;
 - whether the defect is bound up with the remainder of that section; and,

¹ *Miller-Mead v MHLG* [1963] 2 WLR 225

² *Oates v SSCLG v Canterbury CC* [2018] EWCA Civ 2229

- whether the enforcement notice would be valid in the absence of that defect.

It is open to me to conclude that whilst part of the relevant section of the Notice is uncertain, the Notice as a whole complies with the statutory requirements and the offending part can be deleted without rendering the remainder of the notice null. Finally, *Oates* established that the Inspector should approach the exercise in a way which is not unduly technical or formalistic.

10. The wording in paragraph 5a) reads only as a cover-all because it was perhaps unclear to the Council as to whether the building has foundations, a floor slab, or both. The 'and or' in paragraph 5c) relates to items attached to a pole. The pole is clearly required to be removed. In the absence of any challenge under grounds (b) or (f), such that the appellant has not considered it necessary to contest the wording of the allegation or the Notice requirements, I find deletion of the word 'or' in both paragraphs would provide the necessary certainty. It would not cause injustice to the appellant because it is clear from the Notice what the Council is concerned about and that they seek to remedy the breach of planning control.
11. The solar panels are not referred to in the allegation. However, I observed at the site visit that the panel attached to the pole formed part and parcel of the CCTV array. Accordingly, that reference in the requirement remains valid and no further correction is required in that regard.
12. Requirement 5a) of the Notice includes that the land shall be returned to its former agricultural use. The requirement to return the land to its former agricultural use exceeds what an enforcement notice can set out to achieve and therefore that part of the requirement should be deleted.
13. The requirement to revert to a former agricultural appearance is unspecific. However, the deletion of the word 'agricultural' provides more certainty³. Those corrections can be made without injustice to either party because the Notice relates only to operational development and is not concerned with any use of the Land.

The Ground (a) appeal and the deemed application for planning permission

Main Issues

14. The main issues are:
 - whether the development is inappropriate development in the Green Belt having regard to the revised Framework and any relevant development plan policies
 - the effect/s of the development on the character and appearance of the locality; and,
 - if found to be inappropriate, whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the development.

³ See *Lipson v SSE* [1976] 33 P&CR 95 and *Ormston v Horsham RDC* [1965] 17 P&CR 105

Reasons

Green Belt

15. Paragraph GB6 of the Framework states that development in the Green Belt is inappropriate unless it falls within one of the categories in Policy GB7. Key Statement EN1: Green Belt of the Ribble Valley Borough Council Core Strategy 2008-2028 [2014] (the CS) is consistent with the Framework as it limits new buildings in the Green Belt.
16. According to the appellant, the building and associated security CCTV pole were erected for the purposes of agriculture such that it would fall within one of the specified exceptions listed in Policy GB7. According to the appellant, the building is used for the storage of a compact tractor, feed and small equipment, and as a weather shelter for about 50 free-range chickens. The statement suggests the use is active.
17. However, at the time of my site inspection there was no fowl, poultry or livestock present on the site. Aside from a few labelled sapling fruit trees and plants, and landscaping to the boundaries closest to the road, there was little evidence of agricultural production. Indeed, the planting and mowing of the western area of the site appeared typically domestic in scale and character.
18. Within the building were a number of maintenance tools, a ladder, domestic and garden furniture, hand gardening tools and sprays, a limited amount of garden compost, solar lamps, a fire pit, lawn mower and a generator. An attached low store constructed of mesh, pallets and corrugated sheeting covered a ride-on mower, additional garden furniture and a wheelbarrow. Notably, there was an absence of feed, and no provision for access by fowl, or for a compact tractor. Outside of the building, a water storage bowser was loaded on to a road trailer, however, its purpose there was unclear from the evidence.
19. The items observed on site appeared domestic in scale and nature. About half of the enclosed building was given to seating about a table. I am mindful that the Council recently refused application 3/2025/0454 based on insufficient information to demonstrate that a proposed building met an exception to inappropriate development in the Green Belt. It was open to the appellant, here, to provide details and evidence to demonstrate that the building and associated security pole have been used in conjunction with agriculture, as defined by s336 of the Act, to support his claim to that use of the building.
20. The maintenance of land is not a land use. Aside from the claimed tool storage, the substantial absence of evidence of kept livestock or other meaningful production from the land leads me to conclude that the appellant has again failed to demonstrate the claimed agricultural use of the building. Accordingly, on the balance of evidence, I find that the development has not been shown to meet any of the listed exemptions in Policy GB7 of the Framework, and the proposal constitutes inappropriate development in the Green Belt.
21. For the reasons above, the development conflicts with policy EN1 of the CS as it seeks to protect the Green Belt from inappropriate development.

Character and appearance

22. The site lies within the countryside. The landscape appears as rugged upland heath or fenced and walled rough pasture with dispersed pockets of woodland and clustered residential development and farmsteads. The site's raised position close to a brow causes it to be prominent in what is an open and unforgiving landscape which provides for both long distance views and clear visibility from nearby rights of way.
23. Despite its limited height and partial screening from the road by the frontage wall and panel / pallet fencing close to the road, the building is readily visible in the landscape. It appears rudimentary - being constructed of roughly painted composite timber boards, re-used doors and corrugated metal sheet roofing.
24. The appearance bears little relation to either traditional stone agricultural buildings or modern functional metal-sheeted sheds typical of the area. Although of modest scale, it lacks any apparent utility for the claimed purposes. As an isolated structure bordered by domestic style fencing, the design and appearance appear incongruous and fail to reflect the established character of rural buildings in the area.
25. The pole, to which a CCTV camera and a small solar panel are mounted, appears as a tall, recycled, metal street lamppost. The attachments are close to its mid-point. Other vertical poles are visible in the locality, however, these are predominantly timber telegraph poles. The surrounding rural area is substantially devoid of lampposts such that the CCTV pole stands out as a prominent singularity with unnecessarily excessive height. It too fails to respond to the character of development in the rural area.
26. For the above reasons, I find the development conflicts with Policies DMG1 and DMG2 of the CS as they require high standards of design, and that the design and appearance of development in the rural area are in keeping with the character of development and landscape there.

Other Considerations

27. In support of the development the appellant refers me to the policy support for a prosperous rural economy and sustainable land management, including through achieving rural vitality and food production on diversified smallholdings. He states that such enterprises require supporting infrastructure for storage and security and that the removal of the development would impede legitimate small-scale agriculture.
28. Those are planning matters of some merit. However, as above, the appellant has not demonstrated that the building was in agricultural use on the day the Notice was issued, or that a viable agricultural enterprise existed to meaningfully contribute to the rural economy or vitality. The nature of any agricultural diversification that may have taken place has not been identified. Accordingly, I find those matters are of limited weight in favour of the retention of the development.

Planning Balance

29. The development is inappropriate in the Green Belt. The Framework states that inappropriate development is, by definition, harmful to the Green Belt and that substantial weight should be given to that and any other harm to it. The building

and CCTV pole also cause harm to the character and appearance of the rural area.

30. The considerations presented by the appellant are largely unsupported in evidence and very special circumstances have not been demonstrated to exist sufficient to outweigh the totality of the harm identified. I find the development conflicts with the development plan read as a whole and there are no material considerations, including the Framework, to indicate a decision otherwise than in accordance with the development plan.

Conclusion

31. For the reasons given above, I conclude that the appeal should not succeed. I shall uphold the enforcement notice with corrections and refuse to grant planning permission on the application deemed to have been made under section 177(5) of the 1990 Act (as amended).

R Hitchcock

INSPECTOR